

1.3 The transition to democracy

1.3.1 The run-up to the first democratic election

During the period described in the previous section, various organisations were formed to resist colonialism and apartheid. These included not only the ANC and SACP already mentioned above, but also the United Democratic Front (UDF) and large sections of the trade union movement, as well as the PAC and the Black Consciousness Movement, including the Azanian People's Organisation (AZAPO). From a constitutional law perspective, the adoption of the Freedom Charter by liberation organisations aligned with the non-racial movement – the ANC, SACP, the Natal Indian Congress and others⁵⁹ – represents a milestone. This Charter contained claims and expressed the aspirations of large sections of the South African citizenry oppressed by the apartheid regime, formulated in the format of a charter of rights with a strong emphasis on non-racialism. As such, the Freedom Charter is often seen as one of the founding documents of the **human rights** culture which later found expression in the Bill of Rights contained in South Africa's 1996 Constitution.⁶⁰

PAUSE FOR REFLECTION

Extracts from the Freedom Charter

The People Shall Govern!

Every man and woman shall have the right to vote for and to stand as a candidate for all bodies which make laws;
All people shall be entitled to take part in the administration of the country;
The rights of the people shall be the same, regardless of race, colour or sex ...

The People Shall Share in the Country's Wealth!

The national wealth of our country, the heritage of South Africans, shall be restored to the people;
The mineral wealth beneath the soil, the Banks and monopoly industry shall be transferred to the ownership of the people as a whole ...

The Land Shall be Shared Among Those Who Work It!

Restrictions of land ownership on a racial basis shall be ended, and all the land re-divided amongst those who work it to banish famine and land hunger;
The state shall help the peasants with implements, seed, tractors and dams to save the soil and assist the tillers;
Freedom of movement shall be guaranteed to all who work on the land;
All shall have the right to occupy land wherever they choose;
People shall not be robbed of their cattle, and forced labour and farm prisons shall be abolished.

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⁵⁹ The notion of a Charter was first mooted at the annual Congress of the ANC in August 1953. Prof ZK Mathews formally suggested convening a Congress of the People (COP) to draw up the Freedom Charter. The idea was adopted by the allies of the ANC, the South African Indian Congress, the South African Coloured People's Organisation and the South African Congress of Democrats.

⁶⁰ Woolman and Swanepoel (2013) 2.28.

All Shall be Equal Before the Law!

No-one shall be imprisoned, deported or restricted without a fair trial;
 No-one shall be condemned by the order of any Government official;
 The courts shall be representative of all the people ...

All Shall Enjoy Equal Human Rights!

The law shall guarantee to all their right to speak, to organise, to meet together,
 to publish, to preach, to worship and to educate their children;
 The privacy of the house from police raids shall be protected by law ...

There Shall be Houses, Security and Comfort!

All people shall have the right to live where they choose, be decently housed, and
 to bring up their families in comfort and security;
 Unused housing space shall be made available to the people;
 Rent and prices shall be lowered, food plentiful and no-one shall go hungry;
 A preventive health scheme shall be run by the state;
 Free medical care and hospitalisation shall be provided for all, with special care
 for mothers and young children ...

It is often said that the Freedom Charter is the intellectual source for many of the provisions contained in South Africa's Bill of Rights. Like the Bill of Rights, the Freedom Charter addresses both traditional civil liberties such as the right to vote and the right to a trial as well as social and economic rights concerns relating to housing and land, among others. Although the historical and political context in which the document was formulated influenced the content of the provisions of the Charter and the way in which the demands were formulated, it is remarkable that it addresses many of the same concerns addressed in the Bill of Rights.

A second important milestone was reached in 1988 when the ANC – one of the prominent organisations fighting for liberation – published its 'Constitutional Guidelines for a Democratic South Africa'⁶¹ The Guidelines, which drew inspiration from the Freedom Charter, were issued to encourage national debate on the form that a post-apartheid society should take. According to the Guidelines: 'The constitution shall include a Bill of Rights based on the Freedom Charter. Such a Bill of Rights shall guarantee the fundamental human rights of all citizens irrespective of race, colour, sex or creed and shall provide appropriate mechanisms for their enforcement.'⁶²

As Dugard notes, nothing further is said about the 'mechanisms for enforcement', which was probably the result of internal divisions within the ANC on whether the courts or a special commission answerable to Parliament would be best suited to monitor a bill of rights.⁶³ The publishing of the Guidelines was nevertheless significant because it

61 African National Congress (1989) 'Constitutional Guidelines for a Democratic South Africa' reprinted in *SAJHR* 5(2):129–32 at 129. For discussions of this document, see Nagan, WP (1989) *Law and Post-Apartheid South Africa* *Fordham International Law Journal* 12(3):399–451; and Dugard, J (1990) *A Bill of Rights for South Africa* *Cornell International Law Journal* 23(3):441.

62 Constitutional Guidelines at 131.

63 Dugard (1990) 450.

demonstrated a shift in the thinking of the dominant liberation movement who now for the first time embraced the idea of including a bill of rights in a post-apartheid constitution. The move arguably also bolstered the standing of the ANC as the pre-eminent liberation movement in the eyes of the international community. It was not surprising, therefore, when a year later the ANC and its allies secured the adoption by a subcommittee on Southern Africa of the Organisation of African Unity (OAU) – later renamed the African Union – of the Harare Declaration. The Declaration was also endorsed by the Non-Aligned Movement (NAM), the Frontline States and (with some modification) the General Assembly of the United Nations, further internationalising the conflict in South Africa and bringing international pressure to bear on the apartheid state. The Declaration urged the apartheid regime to take measures to create a climate for negotiations, to put an end to apartheid and define a new constitutional order based on a set of democratic principles. These principles included the following:

- All its people have the right to participate in the government and administration of the country on the basis of a universal suffrage, exercised through one person one vote, under a common voters' roll.
- All shall have the right to form and join any political party of their choice provided that this is not in furtherance of racism.
- All shall enjoy universally recognised human rights, freedoms and civil liberties, protected under an entrenched Bill of Rights.

The Declaration also elaborated on the conditions for the negotiations to start, which included the need for the apartheid regime to release all political prisoners and lift the ban on all political parties and movements.⁶⁴ The internationalisation of the conflict, coupled with the impact of economic sanctions as well as internal resistance, forced the minority regime to take steps that would ultimately lead to the negotiation of a transition to democracy. In the telling of South Africa's Constitutional Court, 'remarkably', the country's political leaders 'managed to avoid a cataclysm by negotiating a largely peaceful transition from the rigidly controlled minority regime to a wholly democratic constitutional dispensation'.⁶⁵ Tentative and highly secretive talks between members of the ANC and the NP commenced in mid-1980. When FW de Klerk became President in 1989, he was able to build on the previous secret negotiations with the imprisoned Nelson Mandela. The first significant steps towards formal negotiations took place in February 1990 with the unbanning of the ANC and other organisations such as the PAC by State President FW de Klerk, and the release of political leaders such as Nelson Mandela from prison.⁶⁶ Exiled leaders of the ANC and the PAC returned to South Africa and eventually negotiations about the transition to democracy commenced.

In the run-up to the start of these negotiations, the ANC attempted to seize the initiative from the apartheid regime by publishing its proposed constitutional principles in a discussion document. This document built on the organisation's Constitutional Guidelines published in 1988. Among the guidelines contained in this discussion document was the call for a non-racial democratic state with a bill of rights, an independent judiciary and other related issues.⁶⁷ The document proposed that the Constitution 'should create mechanisms

64 'The Harare declaration: The ANC's chapter for negotiations' (1990, 1 January) accessed on 6 March 2019 at <https://www.africaportal.org/publications/the-harare-declaration-the-ancs-chapter-for-negotiations/>.

65 *Certification of the Constitution of the Republic of South Africa, 1996* (CCT 23/96) [1996] ZACC 26; 1996 (4) SA 744 (CC); 1996 (10) BCLR 1253 (CC) (6 September 1996) (*First Certification*) para 10.

66 Sparks, AH (1994) *Tomorrow is Another Country: The Inside Story of South Africa's Revolution*.

67 South African History Online 'The ANC unveils its proposed constitutional principles' accessed on 6 March 2019 at <https://www.sahistory.org.za/dated-event/anc-unveils-its-proposed-constitutional-principles>.

for enforcing' the rights in the Bill of Rights and that the courts should have a primary role 'in ensuring that the rights are operative'.⁶⁸ This presented another subtle shift on the part of the ANC who for the first time suggested that the provisions of the Bill of Rights could be made judicially enforceable. To some extent this was a surprise move as the apartheid judiciary had been thoroughly discredited and for most observers it seemed inconceivable that any of the liberation movements would agree to entrust the enforcement of the provisions of a supreme Constitution to the apartheid judiciary. Like many other sticking points, this problem was eventually resolved by reaching a compromise about the body empowered to enforce the supreme Constitution. But what had now more or less been settled was that the Constitution would be supreme and that an independent judicial body would be entrusted to enforce it.

1.3.2 CODESA, the MPNF and the two-stage transition

The Congress for a Democratic South Africa (CODESA) was convened in late 1991 and it was this body – comprising all the major political formations in South Africa⁶⁹ – which was tasked with the drafting of the **Interim Constitution**. CODESA was preceded by intense negotiations, particularly between the NP and the ANC, to try to reach agreement on the basic premises that would guide the negotiating process. It is important to note that at the time the NP government was still firmly in power, controlling both the military and the police force who used violence (and other illegal tactics) to suppress opponents of the apartheid regime, while the forces of resistance wielded power mainly through the union movement's ability to organise strikes and the ability of the ANC and the UDF to organise huge street protests. As neither side was able to subdue the other and win a decisive victory, both sides decided to negotiate a transition to democracy. After many preliminary 'confidence-building' steps, the parties agreed on a Declaration of Intent paving the way for CODESA to commence on 21 December 1991. This Declaration – mirroring some of the elements contained in the Harare Declaration – recorded a common view that the new constitution would ensure:⁷⁰

- a) that South Africa will be a united, democratic, non-racial and non-sexist state in which sovereign authority is exercised over the whole of its territory;
- b) that the Constitution will be the supreme law and that it will be guarded over by an independent, non-racial and impartial judiciary;
- c) that there will be a multi-party democracy with the right to form and join political parties and with regular elections on the basis of universal adult suffrage on a common voters roll; in general, the basic electoral system shall be that of proportional representation;
- d) that there shall be a separation of powers between the legislature, executive and judiciary with appropriate checks and balances;

68 ANC Constitutional Committee 'A Discussion Document of Structures and Principles of a Constitution for a Democratic South Africa' (1991, 8 April) at 16, accessed on 7 March 2019 at <https://dullahomarinstitute.org.za/about-us/our-historical-publications/anc-discussion-document-on-structures-and-principles-of-a-constitution-for-democratic-sa.pdf>.

69 By the time the interim Constitution was finalised, the Inkatha Freedom Party (IFP) and its allies in the Freedom Alliance (consisting of various Bantustan governments and pro-apartheid white parties) had walked out of the negotiations.

70 See Venter, F (2010) Liberal democracy: The unintended consequence – South African constitution-writing propelled by the winds of globalisation *SAJHR* 26(1):45–65 at 53. Venter notes that this wording was developed by a working group of the Steering Committee established by the 19 participating parties that committed themselves to CODESA in the course of November and December 1991. It was partly foreshadowed in chapter 1 of the National Peace Accord signed on 14 September 1991 by some 40 parties and organisations.

- e) that the diversity of languages, cultures and religions of the people of South Africa shall be acknowledged; and
- f) all shall enjoy universally accepted human rights, freedoms and civil liberties including freedom of religion, speech and assembly protected by an entrenched and justiciable Bill of Rights and a legal system that guarantees equality of all before the law.⁷¹

Despite this early agreement on the basic framework for negotiations, negotiations stalled in June 1992 when the ANC walked out in protest at the slow pace of progress. CODESA was eventually replaced by the Multi-Party Negotiating Process (MPNP),⁷² which continued to negotiate an interim Constitution amid widespread violence and allegations by opponents of the NP regime that it was using its state power to undermine the negotiations. The MPNP nevertheless finally adopted the interim Constitution late in 1993 before it was ratified by the apartheid Parliament.

The negotiating process was not without its difficulties as the major political parties had very different visions about the transition to democracy. On the one hand, the ANC was committed to the drafting of a constitution by a democratically elected body and the formation of a majority government. On the other hand, the NP favoured the drafting of a final constitution by the unelected MPNP, followed by a long transitional government with power shared among the most popular parties in a manner that would effectively provide a veto for coalition parties. After many twists and turns, the ANC and the NP managed to reach a compromise model for the transition to democracy. While the ANC and the NP agreed that it would be necessary to draft a constitution containing certain basic provisions, those who negotiated this commitment were confronted, however, with two problems. As the Constitutional Court explained:

The first arose from the fact that they were not elected to their positions in consequence of any free and verifiable elections and that it was therefore necessary to have this commitment articulated in a final constitution adopted by a credible body properly mandated to do so in consequence of free and fair elections based on universal adult suffrage. The second problem was the fear in some quarters that the constitution eventually favoured by such a body of elected representatives might not sufficiently address the anxieties and the insecurities of such constituencies and might therefore subvert the objectives of a negotiated settlement. The government and other minority groups were prepared to relinquish power to the majority but were determined to have a hand in drawing the framework for the future governance of the country. The liberation movements on the opposition side were equally adamant that only democratically elected representatives of the people could legitimately engage in forging a constitution: neither they, and certainly not the government of the day, had any claim to the requisite mandate from the electorate.⁷³

The impasse was resolved by a compromise – typical of the constitution-making process – which required a programmed two-stage transition from the apartheid state to a democratic state instead of an outright transfer of power from the old order to the new. In the first stage

⁷¹ Available at <https://omalley.nelsonmandela.org/omalley/index.php/site/q/03lv02039/04lv02046/05lv02047/06lv02049/07lv02052.htm>.

⁷² The MPNP emerged after intense negotiation which led to the Record of Understanding signed on 26 September 1992, which is available at <http://www.anc.org.za/show.php?id=4206>.

⁷³ *First Certification* para 12.

of the transition, the unelected negotiating parties at the MPNP negotiated the interim Constitution which was adopted by the apartheid Parliament in terms of the 1983 Constitution and which became binding immediately after the first democratic election on 16 April 1994.⁷⁴

The interim Constitution provided for the establishment of an interim government of national unity and the country was governed on a coalition basis with both the ANC and the NP represented in the executive. This **coalition government** was provided for in clauses in the interim Constitution that allowed for a form of power sharing among the major political parties for a minimum period of five years. This arrangement lapsed in 1999 – and there is currently no constitutional obligation to share power. In the second stage, a Constitutional Assembly was then to draft a final constitution after the first democratic election.⁷⁵

Table 1.1 The two-stage constitution-making process

Interim Constitution	Final Constitution
Negotiated before the first democratic election by unelected MPNP.	Negotiated after the first democratic election by the elected Constitutional Assembly.
Contained power-sharing agreement allowing the ANC and the NP to share power for five years and provided for two Deputy Presidents – one from the ANC and one from the NP.	Does not provide for any formal power-sharing agreement – after the 1999 election the winner of the election governs the country on its own.
Contained 34 Constitutional Principles and provisions to regulate the adoption of a final constitution, including provisions for the certification of the constitution by a newly created Constitutional Court.	Certified by the Constitutional Court as complying with 34 Constitutional Principles, but only after it was initially rejected by that Court and sent back to the Constitutional Assembly for redrafting.
Contained a Bill of Rights protecting all basic human rights.	Contains an extensive Bill of Rights protecting both civil and political as well as social and economic rights.

Chapter 5 of the interim Constitution prescribed the basic framework and rules for the drafting of the **final Constitution**. Section 68(1) provided that: 'The National Assembly and the Senate, sitting jointly for the purposes of this Chapter, shall be the Constitutional Assembly.' This means that – unlike the interim Constitution – the final Constitution was drafted by democratically elected representatives serving as members of Parliament. In terms of section 68(2), read with sections 68(3) and 73(1) of the interim Constitution, the democratically elected Constitutional Assembly had to adopt a new constitutional text within two years of the first sitting of the National Assembly. For such adoption, section 73(2) required support by a majority of at least two-thirds of all the members of the Constitutional Assembly. Section 71(2) then required that: 'The new constitutional text passed by the Constitutional Assembly, or any provision thereof, shall not be of any force and effect unless the Constitutional Court has certified that all the provisions of such text comply with the

⁷⁴ Murray, C (2001) A constitutional beginning: Making South Africa's final Constitution *University of Arkansas at Little Rock Law Review* 23:809–38(3):809–38 at 813, available at <https://lawrepository.ualr.edu/lawreview/vol23/iss3/3>.

⁷⁵ The procedure for the adoption of the final Constitution was laid down in ss 68–73 of the Constitution of the Republic of South Africa Act 200 of 1993.

Constitutional Principles referred to in subsection (1)(a) [Constitutional Principles].⁷⁶ Given that the apartheid judiciary had been fatally compromised by its participation in the apartheid system, it could not be trusted with this important task. It is for this reason that the interim Constitution provided for an entirely new Constitutional Court. The interim Constitution provided for a complex process for the appointment of the 11 judges of the Constitutional Court. The democratically elected President was given the power to appoint the first head of the Constitutional Court 'in consultation with the Cabinet and after consultation with the Chief Justice'.⁷⁷ The President was also given the power to appoint a further 4 of the 11 judges to the Constitutional Court 'in consultation with the Cabinet and the Chief Justice'.⁷⁸ The other six judges were also appointed by the President 'in consultation with the Cabinet and after consultation with the President of the Constitutional Court' from a list of 10 names forwarded to the President by the newly established Judicial Service Commission.⁷⁹ This process for the appointment of a newly created Constitutional Court allowed for the creation of a Court that was staffed by judges not tainted by any close association with the apartheid regime. Several of the new judges were aligned with the struggle against apartheid with at least one – Albie Sachs – having been a member of the ANC Constitutional Committee.

The Constitutional Principles, negotiated before the first democratic election and thus included in the interim Constitution, contained wide-ranging provisions. In addition, the relatively open-ended language afforded considerable power to the Constitutional Court to interpret and apply these provisions when it was called on to certify the final Constitution. The basic structures and premises of a new constitutional text contemplated by the Constitutional Principles were described as follows by the Constitutional Court:

- a) a constitutional democracy based on the supremacy of the Constitution protected by an independent judiciary;
- b) a democratic system of government founded on openness, accountability and equality, with universal adult suffrage and regular elections;
- c) a separation of powers between the legislature, executive and judiciary with appropriate checks and balances to ensure accountability, responsiveness and openness;
- d) the need for other appropriate checks on governmental power;
- e) enjoyment of all universally accepted fundamental rights, freedoms and civil liberties protected by justiciable provisions in the NT [final Constitution];
- f) one sovereign state structured at national, provincial and local levels, each of such levels being allocated appropriate and adequate powers to function effectively;
- g) the recognition and protection of the status, institution and role of traditional leadership;
- h) a legal system which ensures equality of all persons before the law, which includes laws, programmes or activities that have as their objective the amelioration of the conditions of the disadvantaged, including those disadvantaged on grounds of race, colour or creed;
- i) representative government embracing multi-party democracy, a common voters' roll and, in general, proportional representation;

⁷⁶ See also *First Certification* paras 16–19.

⁷⁷ S 97(2)(a) of the interim Constitution.

⁷⁸ S 99(3) of the interim Constitution.

⁷⁹ S 99(4) of the interim Constitution read with s 99(5).

- j) the protection of the NT against amendment save through special processes;
- k) adequate provision for fiscal and financial allocations to the provincial and local levels of government from revenue collected nationally;
- l) the right of employers and employees to engage in collective bargaining and the right of every person to fair labour practices;
- m) a non-partisan public service broadly representative of the South African community, serving all the members of the public in a fair, unbiased and impartial manner; and
- n) security forces required to perform their functions in the national interest and prohibited from furthering or prejudicing party political interests.⁸⁰

The interim Constitution determined that the decision of the Constitutional Court certifying that the provisions of the new constitutional text complied with the Constitutional Principles would be final and binding. It also prohibited any other court of law from enquiring into or pronouncing on the validity of the text.⁸¹ It is important to note that once the Constitutional Court had certified the text of the final Constitution, compliance or non-compliance of any aspect of the text with the Constitutional Principles could never be raised in any court of law again. This means that the Constitutional Principles, while of utmost importance in guiding the work of the Constitutional Assembly and the process of certification by the Constitutional Court, have played their role and cannot now be relied on by any party who wishes to challenge an amendment to the Constitution.

COUNTER POINT

The adoption of the interim Constitution did not herald the era of decolonisation

Tshepo Madlingozi contests the notion that 'ANC-aligned elites pursued an anti-colonial agenda', reflected in the Freedom Charter and later the ANC Constitutional proposals. Madlingozi thus argues that the adoption of the interim and then final constitutions should not be seen as a decolonising moment. As an alternative he proposes a 'decolonisation approach to the Constitution and constitutionalism' based on the following two pillars:

The first is the contention that 1994 did not herald the era of decolonisation. The argument here is that white domination transmuted into white hegemony while the majority of black people continue to be pariahs of South Africa. In contrast to liberal and mainstream critical scholars, decolonisation scholars do not regard truncated democracy, structural segregation, institutionalised discrimination as well as the various manifestation of social injustice as crises threatening the post-colonial order. Rather, decolonisation scholars apprehend these crises as symptoms of a dispensation that some regard as on-going conquest while others designate it as neo-colonialism or neo-apartheid. The second fundamental pillar of the decolonisation movement is the thesis that on-going conquest or neo-colonialism is constituted by, and constitutes, post-1994 constitutionalism. Flowing from these two pivotal pillars, decolonisation scholars call for a

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⁸⁰ *First Certification* para 45.

⁸¹ S 71(3) of the interim Constitution.

post-conquest constitution. The argument here is that only a post-conquest constitution will deal decisively with what, from a constitutional perspective, I regard as the three main legacies of settler colonialism and colonisation, namely: (1) the colonial state form and, conversely, the eternal subjugation of indigenous sovereignties; (2) the entrenchment of a world of apartness and the deliberate failure to resolve the National Question; and (3) the continuing subordination of African lifeworlds and their epistemologies and jurisprudences.⁸²

1.3.3 Drafting and adoption of the final 1996 Constitution

The 1994 election – in which the Inkatha Freedom Party (IFP) along with all other major parties decided to take part after a last-minute deal – delivered an overwhelming majority for the ANC. However, the ANC did not gain the two-thirds majority required to write the Constitution without the support of other political parties. Table 1.2 indicates the final election results and the number of seats gained by each party in the National Assembly.

Table 1.2 The final 1994 election results⁸³

Party	Votes	%	Seats
African National Congress (ANC)	12 237 655	62,65	252
National Party (NP)	3 983 690	20,39	82
Inkatha Freedom Party (IP)	2 058 294	10,54	43
Freedom Front (FF)	424 555	2,17	9
Democratic Party (DP) ⁸⁴	338 426	1,73	7
Pan Africanist Congress (PAC)	243 478	1,25	5
African Christian Democratic Party (ACDP)	88 104	0,45	2

Given that the ANC did not obtain a two-thirds majority and because its negotiators were inclined to seek consensus, it tried hard to gain the necessary support for the various provisions of the Constitution from its long-standing opposition in the negotiating process, the NP. An enormous public participation programme and a programme of political discussions were also launched to ensure popular participation in the negotiating process which, it was believed, would lead to popular acceptance of the outcome reached.⁸⁵ Despite the Assembly's commitment to transparency, meeting away from the watchful eye of the

82 Madlingozi, T (2018) South Africa's first black lawyers, amaRespectables and the birth of evolutionary constitution – a review of Tembeka Ngcukaitobi's *The Land is Ours: South Africa's First Black Lawyers and the Birth of Constitutionalism* SAJHR 34(3):517–29 at 519–20.

83 See South African History Online 'Elections in post-apartheid South Africa' available at <http://www.sahistory.org.za/elections-post-apartheid-south-africa>.

84 The Democratic Party is the forerunner of the Democratic Alliance, that was formed when the DP merged with the NP.

85 Murray (2001) 816. The Constitutional Assembly's slogan, 'You've made your mark now have your say', invited the many millions of South Africans who had voted for the first time in 1994 to contribute to the country's first democratic Constitution – and over two million did so. See generally Ebrahim, H (1998) *The Soul of a Nation: Constitution-making in South Africa*.

press was probably essential to resolve some of the most fundamental disagreements between the parties. Technical legal advisers also played an important role in formulating alternative options relating to some of the most controversial clauses.⁸⁶ However, it is widely accepted that the consensus, which ultimately emerged, favoured the dominant party – the ANC.⁸⁷

The interim Constitution contained several mechanisms to break any deadlocks in the negotiations. A panel of constitutional experts, consisting of lawyers, was empowered to advise the Assembly to try to resolve deadlocks. The interim Constitution also provided that if a draft constitution did not command two-thirds of the vote but did gain the support of the majority of the members, it could nevertheless become the country's constitution if it was supported by 60% of the voters in a referendum.⁸⁸ However, neither of the major parties was keen to resort to the referendum option and eventually the Constitutional Assembly voted to pass the new Constitution with only two no votes and 10 abstentions.⁸⁹

COUNTER POINT

Was the public participation programme influential in the constitution-making process?

In a submission to the Constitutional Assembly, Sampson Moholoane – one of the more than two million South Africans who made submissions to the Constitutional Assembly – wrote:

I want to stress one area which I believe as a citizen of South Africa one should have access to at all times. That is a welfare programme that will leave no South African from being able to afford three square meals a day. It must be a citizen's right to be able to have shelter and food even when he is not working, even if he is a destitute. The new Constitution must make this compulsory ...⁹⁰

Some commentators argue that the public participation programme run by the Constitutional Assembly was not decisive in influencing the form and content of the provisions of the final Constitution as these submissions often contained vague wish lists concerned with problems of poverty and a low standard of living. Others point to the set of social and economic rights (discussed in chapter 16) as proof that the process did play an important role in giving voice to the aspirations of ordinary people like Sampson Moholoane in the drafting of the Constitution.

After the Constitutional Assembly had adopted the final Constitution, the document was submitted to the Constitutional Court for certification. All political parties involved in the negotiations, except for the ANC and the PAC, lodged objections to the text with the Constitutional Court. Because the document had emerged through negotiations, many of

⁸⁶ See ss 72–3 of the interim Constitution. A panel of constitutional experts comprising two practising lawyers and five academic lawyers was to review the final Constitution. The panel had a month to come up with 'deadlock-breaking' ideas.

⁸⁷ Woolman and Swanepoel (2013) 2.41.

⁸⁸ See s 73(8) of the interim Constitution.

⁸⁹ Murray (2001) 832.

⁹⁰ As quoted in Murray (2001) 821. This particular submission was dated 16 May 1995.

these parties were not happy with certain clauses in the draft text and challenged these provisions in the hope that the Constitutional Court would refuse to certify the text for failing to comply with the 34 Constitutional Principles.

The Constitutional Court saw its task as measuring the text of the final Constitution against the Constitutional Principles to determine whether the text complied with those principles. The Court held that the Constitutional Principles had to be 'applied purposively and teleologically to give expression to the commitment "to create a new order" based on "a sovereign and democratic constitutional state" in which "all citizens" are "able to enjoy and exercise their fundamental rights and freedoms"'.⁹¹ The Principles therefore had to be interpreted holistically and in a manner that was not too technically rigid.⁹² The Constitutional Court evaluated the text of the final Constitution in two distinct ways. First, it asked whether the basic structures and premises of the final constitutional text were in accordance with those contemplated by the Constitutional Principles.⁹³ In *Certification of the Constitution of the Republic of South Africa, 1996*,⁹⁴ the *First Certification* judgment, the Constitutional Court found that the text did comply with the structural requirements. The Court then proceeded to consider the details of the text and found that it was not compatible with the Constitutional Principles on nine discrete grounds. It also set out in fairly unambiguous terms the changes that were necessary if the Constitution was to meet the test of the Principles.⁹⁵ This meant that the Constitutional Assembly was found to have adopted an unconstitutional Constitution and that the Assembly had to amend the text to comply with the Constitutional Court judgment. Although the Constitution was adopted by a democratically elected body, the Constitutional Court had the final say on whether the provisions agreed on by this body were compliant with the Constitutional Principles negotiated by the unelected MPNP.

As soon as the Constitutional Court decision was handed down, the Constitutional Assembly reassembled and amended the Constitution as required by the Constitutional Court judgment. The Constitutional Court finally certified the amended draft of the Constitution in *Certification of the Amended Text of the Constitution of the Republic of South Africa, 1996*, the *Second Certification* judgment, as being compliant with the 34 Constitutional Principles in December 1996.⁹⁶ President Nelson Mandela signed the final version of the 1996 Constitution on 10 December 1996 and it came into effect on 4 February 1997. It is this text – and its subsequent amendments – which forms the subject of this book.

COUNTER POINT

The unique birth of the 1996 Constitution

Some commentators and politicians have argued that the way in which South Africa's final Constitution came into existence was unique in the world. A newly created Constitutional Court actually declared unconstitutional a Constitution drafted by a democratically elected constitution-making body. However, so they argue, this approach

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91 *First Certification* para 34.

92 *First Certification* paras 36–7.

93 *First Certification* para 44.

94 (CCT 23/96) [1996] ZACC 26; 1996 (4) SA 744 (CC); 1996 (10) BCLR 1253 (CC) (6 September 1996).

95 See *First Certification* para 482.

96 (CCT37/96) [1996] ZACC 24; 1997 (1) BCLR 1; 1997 (2) SA 97 (CC) (4 December 1996).

represented a wise compromise that helped to allay the fears of the minority NP but that ultimately allowed the dominant ANC to have a determinative influence on the text finally agreed to and adopted. Perhaps, they say, the text would not have looked so very different even if the Constitutional Assembly had not been required to comply with the 34 Constitutional Principles. This is because neither the NP nor the ANC could muster the support of two-thirds of the members of the National Assembly to push through their own agendas and were therefore forced to make compromises.

1.4 The South African Constitution of 1996

1.4.1 The transformative nature of the Constitution

Formally, the South African Constitution, adopted by the Constitutional Assembly in 1996, creates a sovereign democratic state founded on the values of human dignity and the advancement of equality, non-racialism and non-sexism, the supremacy of the Constitution, the rule of law, universal adult suffrage and a multi-party system of democracy in which free and fair elections are held regularly.⁹⁷ Unlike the Westminster-style constitutions of the colonial and apartheid eras, parliamentary sovereignty has been replaced by constitutional sovereignty. This means the Constitution is the supreme law of the Republic – law or conduct inconsistent with it is invalid and the obligations imposed by it must be fulfilled.⁹⁸ It contains a detailed Bill of Rights that sets out a list of civil, political, social and economic rights. The Bill of Rights also places both a negative and a positive obligation on the state and – in some cases – a further obligation on private individuals and institutions, to respect, protect, promote and fulfil the rights in this Bill of Rights.⁹⁹

The courts – with the Constitutional Court at the apex – are the guardians of the Constitution in general and the Bill of Rights in particular. They have the power to declare invalid any act or any legislation inconsistent with it. To this end, the Constitution sets up three branches of government (the legislature, the executive and the judiciary) and a system of separation of powers between the three branches. It also guarantees the independence of the judicial branch in relation to the other two branches to allow the judiciary to interpret and enforce the law and the provisions of the Constitution without fear, favour or prejudice.

The Constitution is avowedly a **democratic** one, guaranteeing the right of citizens freely to make political choices. This includes the specific rights to form a political party, to participate in the activities of that party and to campaign for a party or cause. Moreover, citizens have the right to free, fair and regular elections for any legislative body, as well as the right to stand for and hold public office and vote in those elections.

The Constitution also recognises the institution, status and role of traditional leadership according to customary law. It makes provision for the functioning of a traditional authority that observes a system of customary law, subject to any applicable legislation and customs. The Constitution also enjoins courts to apply customary law when that law is applicable, but always subject to the Constitution and any legislation that specifically deals with customary

⁹⁷ S 1 of the Constitution.

⁹⁸ S 2 of the Constitution.

⁹⁹ S 7(2) of the Constitution.

law.¹⁰⁰ In addition, the Constitution provides authority for various legislatures to adopt legislation that provides for a role for traditional leadership as an institution at local level on matters affecting local communities. To deal with matters relating to traditional leadership, the role of traditional leaders, customary law and the customs of communities observing a system of customary law, national or provincial legislation may provide for the establishment of houses of traditional leaders and national legislation may establish a council of traditional leaders.¹⁰¹

We will discuss these technical aspects of the Constitution in detail in subsequent chapters of this book. However, it is important to note that we must also view the Constitution of 1996 through a less formalistic lens to capture the unique nature of the document and to come to grips with the manner in which the Constitutional Court has interpreted its provisions. In particular, we must be alert to the fact that the Constitution was written in response to the social, economic and political history of South Africa and is often described as a transformative Constitution,¹⁰² a document committed to social, political, legal and economic transformation.

In fact, the transformative nature of the South African Constitution has been confirmed in several judgments of the Constitutional Court.¹⁰³ But what does this mean in practice? The Constitution is said to have set itself the mission of assisting with the transformation of society in the public and private spheres. It rejects 'that part of the past which is disgracefully racist, authoritarian, insular, and repressive' and facilitates a move towards a more democratic, universalistic, caring and aspirationally egalitarian society.¹⁰⁴ South African constitutionalism thus attempts to transform our society from one deeply divided by the legacy of a racist and unequal past into one based on democracy, social justice, equality, dignity and freedom.¹⁰⁵

Exactly how the end product of this metamorphosis should look and when, if ever, it will be achieved must necessarily remain uncertain and dependent on the outcomes of this continuous interaction. However, the outcome should simultaneously not be conceived as so vague as to preclude meaningful and deliberate participation in the process. Traditional liberal constitutions are said to authorise, regulate and check the exercise of public power, but supposedly allow voters and politicians to decide in which direction a society will move

100 S 211 of the Constitution.

101 S 212 of the Constitution.

102 See Klare, K (1998) Legal culture and transformative constitutionalism *SAJHR* 14(1):146-88; Chaskalson, A (2000) The third Bram Fischer lecture: Human dignity as a foundational value of our constitutional order *SAJHR* 16(2):193-205 at 199; Pieterse, M (2005) What do we mean when we talk about transformative constitutionalism? *SA Public Law* 20:155-66; Langa, P (2006) Transformative constitutionalism *SLR* 17(3):351-60; Moseneke, D (2009) Transformative constitutionalism: Its implications for the law of contract *SLR* 20(1):3-13 at 4; Davis, DM and Klare, K (2010) Transformative constitutionalism and the common and customary law *SAJHR* 26(3):403-509.

103 *Mkontwana v Nelson Mandela Metropolitan Municipality and Another; Bissett and Others v Buffalo City Municipality and Others; Transfer Rights Action Campaign and Others v MEC, Local Government and Housing, Gauteng, and Others (Kwazulu-Natal Law Society and Msunduzi Municipality as amici curiae)* (CCT 57/03) [2004] ZACC 9; 2005 (1) SA 530 (CC); 2005 (2) BCLR 150 (CC) (6 October 2004) para 81; *Soobramoney v Minister of Health (Kwazulu-Natal)* (CCT32/97) [1997] ZACC 17; 1998 (1) SA 765 (CC); 1997 (12) BCLR 1696 (CC) (27 November 1997) para 8; *Investigating Directorate: Serious Economic Offences and Others v Hyundai Motor Distributors (Pty) Ltd and Others In re: Hyundai Motor Distributors (Pty) Ltd and Others v Smit NO and Others* (CCT1/00) [2000] ZACC 12; 2000 (10) BCLR 1079 (CC); 2001 (1) SA 545 (CC) (25 August 2000) para 21.

104 *S v Makwanyane and Another* (CCT3/94) [1995] ZACC 3; 1995 (6) BCLR 665 (CC); 1995 (3) SA 391 (CC); 1995 (2) SACR 1 (CC) (6 June 1995) para 262.

105 See Davis, D (1999) *Democracy and Deliberation: Transformation and the South African Legal Order* 44.

and at what pace that movement will occur. By contrast, the South African Constitution is said to contain a commitment to creating a society that will look fundamentally different from the one that existed at the time when the Constitution was being drafted. When interpreting the text of the Constitution, it is therefore necessary to look both backward and forward. We need to look backwards at the history of South Africa and to ask what negative aspects of our past this document aimed to address and to transform, to what extent the transformation was required and at what pace. At the same time, the Constitution also signals a tentativeness, suggesting that it is a permanent work-in-progress, always looking forward, always subject to revision and improvement to try to achieve the society it envisages.¹⁰⁶

This vision of the transformative nature of the Constitution is at least partly derived from the text of the Constitution itself. The text acknowledges that the new dispensation arose in a particular historical context and requires an acknowledgement of the effects of past and ongoing injustice. The notion that the Constitution is a transformative document is also captured by referring to it as a post-liberal document. This is so because while the Constitution contains many provisions that mirror provisions in other constitutions in liberal democracies (such as the US Constitution), it also departs from liberalism as it envisages a move towards an 'empowered' model of democracy.¹⁰⁷ The transformative or post-liberal nature of the South African Constitution manifests with reference to several unique characteristics of the document which were first highlighted by Klare: it is social, redistributive, caring, positive, at least partly horizontal, participatory, multicultural and self-conscious about its historical setting and transformative role and mission.¹⁰⁸

- **Social rights and a substantive concept of equality:** The Constitution endorses the view that political freedom and socio-economic justice are inextricably linked. There is therefore a close connection between political rights, such as freedom of expression and the right to vote, and socio-economic rights such as the right to housing and health care. Democracy and the democratic rights that make democracy possible only have meaning if they lead to the creation of a new kind of society in which people actually have the social resources they need to exercise their rights meaningfully. The chief purpose of classical liberal bills of rights is to ensure that the government of the day does not interfere with the liberty of individuals and the property rights of the middle classes. By contrast, the South African Constitution embodies the idea that the power of the community can (and must) be deployed to achieve goals consistent with freedom. This is why the Constitution contains a pervasive and overriding commitment to the achievement of substantive (redistributive) equality.
- **Affirmative state duties:** A traditional liberal bill of rights places only negative restraints on a government to stop it from interfering with the liberty of individuals. By contrast, the South African Bill of Rights, in addition to negative restraints, also imposes positive

¹⁰⁶ See ss 1 and 7 of the Constitution. The Constitution's historically situated character has been recognised in several Constitutional Court judgments. See, for example, *The Azanian People's Organization (AZAPO) and Others v The President of the Republic of South Africa and Others CCT17/96* [1996] ZACC 16; 1996 (8) BCLR 1015; 1996 (4) SA 672 (CC) (25 July 1996) para 50: 'constitutional journey from the shame of the past to the promise of the future'; para 42: '[w]hat the Constitution seeks to do is to facilitate the transition to a new democratic order'. See also De Vos, P (2001) *A bridge too far? History as context in the interpretation of the South African Constitution SAJHR* 17(1):1-33.

¹⁰⁷ Klare (1998) 152.

¹⁰⁸ See generally Klare (1998) 153-6.

or affirmative duties on the state to combat poverty and promote social welfare, to assist people in authentically exercising and enjoying their constitutional rights, and to facilitate and support individual self-realisation.¹⁰⁹ For example, the Bill of Rights places a positive duty on the state to take reasonable steps progressively to ensure access to socio-economic welfare in areas such as housing, health care, food, water, social security and the protection of children.¹¹⁰

- **Horizontality:** Traditional bills of rights in liberal constitutions are said to be concerned with the vertical relationship between citizens and the state, limiting the power of the state to interfere in the lives of individuals or private institutions. However, the South African Bill of Rights has an explicit **horizontal application**. This means that in certain cases the Bill of Rights does not only limit the power of the state to interfere in the lives of individuals or citizens, but also binds individuals and institutions and, in some cases, requires them to respect the rights of others. Thus section 8(2) states that the Bill of Rights binds private parties in certain cases. Private parties are expressly barred from engaging in invidious discrimination and government is obliged to enact legislation enforcing that command.¹¹¹ Moreover, section 39(2) requires courts to take into account the spirit, purport and objects of the Bill of Rights when they interpret and develop the common law and customary law which, to a large degree, regulate private relationships.
- **Participatory governance:** As we shall see, the nature of the democracy established by the Constitution focuses on the participation of citizens at all levels and at all stages of decision-making. The Constitution envisages inclusive, accountable, participatory, decentralised and transparent institutions of governance and contemplates that government will actively promote and deepen a culture of democracy.¹¹²
- **Multiculturalism:** South Africa is a multicultural society and it is said that the Constitution celebrates multiculturalism and diversity within a framework of national reconciliation and *ubuntu*.¹¹³ It expressly promotes gender justice and rights for vulnerable and victimised groups and identities, explicitly including protections for gay men, lesbians and the disabled. It also protects language diversity and respect for cultural tradition and diversity and the 'right to be different'.¹¹⁴
- **Historical self-consciousness:** The Constitution is said to reject the notion of a constitution as a social contract entered into by citizens, presenting a snapshot of that society at the time of its conclusion and requiring the protection of the *status quo* at the time of its adoption. Unlike traditional liberal constitutions, it is said to reject the notion that its aim is to protect the pre-existing hierarchy and distribution of social and economic power. It accepts that legal and political institutions are chosen, not

109 See s 7(2) of the Constitution, which states that the state has a duty to respect, protect, promote and fulfil the rights in the Bill of Rights, and *Minister of Finance and Other v Van Heerden* (CCT 63/03) [2004] ZACC 3; 2004 (6) SA 121 (CC); 2004 (11) BCLR 1125 (CC) (29 July 2004) para 24.

110 See ss 26–8 of the Constitution.

111 See s 9(4) of the Constitution.

112 See, generally, ss 40(2) and 41(1). See also s 32 (access to information); s 33 (right to fair and just administrative action); and ss 34 and 38 (access to courts) and s 234 (charters of rights).

113 *Makwanyane* paras 224 and 263.

114 See *National Coalition for Gay and Lesbian Equality and Another v Minister of Justice and Others* (CCT11/98) [1998] ZACC 15; 1999 (1) SA 6 (CC); 1998 (12) BCLR 1517 (CC) (9 October 1998) para 135: 'The Constitution acknowledges the variability of human beings (genetic and socio-cultural), affirms the right to be different, and celebrates the diversity of the nation.'

given, that democracy must be periodically reinvented, and that the Constitution itself must constantly be interpreted and reinterpreted to reflect the evolving understanding of the needs and problems a society faces. The 1996 text also contains numerous passages acknowledging that constitutional provisions are not self-executing, but are evolving texts that must be interpreted and applied.¹¹⁵

COUNTER POINT

Transformative constitutionalism and its critics

Some critics have pointed out that despite the transformative nature of the Constitution, South African society has not been radically transformed over the past 25 years. They argue that transformative constitutionalism is an ideal that finds little application in practice. Other critics have gone further, by questioning whether transformative constitutionalism is a concept that can respond adequately to South Africa's specific realities. For example, Joel Modiri has argued that:

[I]t would be an overstatement to deny that the constitutional project remains constrained by the context of its emergence, the reigning legal and political culture, and by the nature of modern law to draw lines (rationalisation), give effect to a decision (fixity) and perform sovereign acts (closure). In other words, while transformative constitutional discourse can open debate within the governing social rules, its ability to contest the actual rules themselves is severely limited. If the varying approaches... [to transformative constitutionalism] implicitly discouraged blind triumphalist faith in the constitution, they nevertheless remained markedly optimistic about its 'transformative' and 'progressive' possibilities and thus did not occupy themselves with the fashioning of radical alternatives grounded in and sensitive to the specific social, cultural and historical realities of South Africa. Recent studies have furthermore revealed the operation of a hierarchy in terms of which the development and conceptualisation of knowledge on modern constitutionalism is framed through the experiences, institutions and epistemologies of the Global North, with the Global South relegated to a lower, underdeveloped and purely mimetic tier. This attachment to hegemonic North American and European legal traditions and schools of thought reproduces global patterns of legal knowledge that perpetuate the marginality of Southern law and African jurisprudential approaches in knowledge production on South African constitutionalism.¹¹⁶

The recognition by South African courts that the South African Constitution is transformative in nature has not resulted in a radical transformation of society. As noted below, South Africa remains an inegalitarian society in which social and economic inequality largely tracks along race and gender lines. There remains a gap between what is promised in the Constitution and what has actually been achieved. The Constitution contains ideals which a functioning democracy should strive to achieve in order to establish a more just society. These ideals

¹¹⁵ S 1(a); s 7(1); s 39(1) of the Constitution.

¹¹⁶ Modiri, J (2018) Conquest and constitutionalism: first thoughts on an alternative jurisprudence *SAJHR* 34(3):300-25 at 310.

include the ideal of radically transforming South Africa to become a more egalitarian society in which racism, sexism, homophobia and class prejudices and economic marginalisation are reduced or eradicated. Respect for the values of human dignity, equality and freedom underpins this ideal. The Constitution contains various mechanisms (including a system of separation of powers and checks and balances as well as powers for courts to review and set aside unconstitutional acts) aimed at empowering the elected government of the day to work to achieve these ideals. Some critics argue that the limited success of transformative constitutionalism must be placed squarely at the door of the elected government at national, provincial and local level, who have not used their power effectively to effect radical social and economic change. An example of this argument is presented by Penny Andrews who argues that:

There are many reasons for the country's inability to realise the rights set out on the Constitution. They include a lack of political will on the part of all spheres of government (national, provincial, and local), bureaucratic indifference or incompetence, corruption and mismanagement. Other problems concern either ineptitude of the so-called Chapter 9 institutions, established to strengthen the country's constitutional democracy, including the Human Rights Commission and the Gender Commission. And the failure of government to implement their recommendations. The reasons also relate to the failure of government to implement court decisions.¹¹⁷

Others have argued that in order for the concept to be effective would require a very specific commitment to redress from those interpreting and enforcing the Constitution. But a shared consciousness of the injustices of the past and an acceptance of the radical steps necessary to address this, so it is argued, is lacking in South Africa. Sanele Sibanda, provides a succinct version of this argument when he states:

Without the translation of the goals of transformation into explicitly entrenched constitutional provisions that demand reconstruction, redistribution and more deeply democratic popular participation that go beyond the Bill of Rights, it is arguable that transformative constitutionalism was always going to struggle to entrench itself, particularly in light of the overall constitutional scheme which is a liberal democratic one. This assertion is based on the fact that methodologically, in a Constitution that structurally and institutionally accords with the basic tenets of liberal democratic constitutionalism (a few innovations notwithstanding), transformative constitutionalism would, in a practical sense, only appear to be achievable through sustained and purposeful legal and judicial interpretation demanding a shared consciousness. Therefore, it is my contention that within the context of South Africa's prevailing conservative legal culture, the extent to which the success of transformative constitutionalism as an enterprise depends on legal and judicial interpretation leaves the project in danger of remaining an incomplete project at best.¹¹⁸

¹¹⁷ Andrews, P (2017, 4 July) South Africa's problems lie in political negligence, not its Constitution *The Conversation* accessed on 6 August 2019 at <https://theconversation.com/south-africas-problems-lie-in-political-negligence-not-its-constitution-80474>.

¹¹⁸ Sibanda, S (2011) Not Purpose-made! Transformative Constitutionalism, Post-independence Constitutionalism and the Struggle to Eradicate Poverty *Stellenbosch Law Review* (Jan 2011) 22(3):482–500 at 493. [Footnotes omitted]